IN THE NATIONAL COMPANY LAW TRIBUNAL: CHANDIGARH
(*through* Hybrid Mode)
COURT-I

Item No. 104

CA No. 194/23
COMP.APPL 25/ 2024
In
CP (CAA)No. 20/Chd/Hry/2023
(2nd Motion)

IN THE MATTER OF:

Amon Estates Pvt. Ltd. & Ors. …Transferor Companies

And

DLF Southern Towns Pvt. Ltd. …Transferee Company

Under Section: **230-232, CA 2013 and Rule 11 of NCLT Rules, 2016**

Order delivered on 09.02.2024

CORAM:

SH. HARNAM SINGH THAKUR
HON'BLE MEMBER (J)

SH. L.N. GUPTA
HON'BLE MEMBER (T)

PRESENT:

For the Petitioner	:	Mr. Abhinav Sood, Advocate
For the Income Tax Department	:	Mr. Yogesh Putney, Advocate
For the OL Department	:	Mr. Edward Augustine, Advocate
For the RD/ RoC	:	Mr. Vineet Khatri, Company Prosecutor

ORDER

CA No. 25/2024

This application has been filed to place on record the audited financial statements of the Petitioner Companies as on 31.03.2023 and unaudited financial statements till 31.12.2023 along with supported affidavit. The same are taken on record. Thus, CA No. 25/2024 is disposed of and let the same be tagged with the main petition for reference purpose.

CP (CAA)No. 20/Chd/Hry/2023

Ld. Counsel appearing for the Applicant Companies explained their stand *viz-a-viz* the observations made by the Regional Director. However, the Ld. Company Prosecutor appearing on behalf of the Regional Director seeks time to examine the same and apprise this Tribunal, if they have any observation in the matter to the proposed scheme. Ld. counsel appearing of the Official Liquidator submitted that the Transferor Company Nos. 1 and 6 have nil income and they do not have any other objection. Ld. counsel appearing for the Income Tax Department submits that in case of Transferor Company Nos. 1 and 7, there are losses, which would be considered as per Section 72A and 79 by the Income Tax Department. List the matter on 16.02.2024.

CA No. 194/23

List on 16.02.2024.

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(L.N. GUPTA)
MEMBER (T)

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(HARNAM SINGH THAKUR)
MEMBER (J)

SM